

Court No. - 35

Case :- WRIT - C No. - 51326 of 2009

Petitioner :- M/S. Ganesh Polytex Ltd.

Respondent :- U.P. Power Corpn. Ltd. & Ors.

Petitioner Counsel :- Mayank Agrawal,A.N. Singh

Respondent Counsel :- Pankaj Kr. Shukla

Hon'ble Sunil Ambwani,J.

Hon'ble Virendra Singh,J.

As prayed, put up on 13.10.2009.

Order Date :- 8.10.2009

SP/

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Heard Shri Mayank Agrawal, learned counsel for petitioner. Shri Pankaj Kumar Shukla appears for respondent nos. 1, 2 and 3.

The petitioner company is manufacturing yarn. It requested for electricity connection from respondent no. 2 for a sanction load of 800 KVA. After completing the formalities the load of 800 KVA was sanctioned and released on certain terms and conditions on 33 K.V. independent feeder from 132 KV Vilaspur Sub Station. In the estimate prepared on 4.2.2009 an amount of Rs. 8 lacs was shown as system loading charges. In this writ petition the petitioner has prayed for refund of the 'system loading charge' with interest and also for refund of Rs. 6 lacs realised by way of demand charges from the month of June, 2009.

Shri Pankaj Kumar Shukla appearing for respondents has filed a counter affidavit in which he has raised a preliminary objection to the maintainability of the writ petition without exhausting the remedies provided under the U.P. Electricity Supply Code 2005. Chapter 4.6 of the Code provides for estimate and that clause 4.6 (f) provides as follows:-

"4.6

Estimate..

(f) Disputes regarding the estimate may be referred to the authority that is one level higher than the sanctioning authority and if the applicant is still aggrieved he may approach the Consumer Grievance Redressal Forum for adjudication."

The U.P. Electricity Supply Code 2005 provides for statutory remedies of disputes regarding estimates and which includes all the factors in the estimate including the system loading charges. There is no good ground pleaded to overreach the alternative remedy.

The petitioner is accordingly relegated to the statutory alternative remedy of referring the dispute to the authority one level higher and thereafter if he is still not satisfied, to approach the Consumer Grievance Redressal Forum.

The writ petition is **disposed of** with observations that if the petitioner opts for alternative remedies, his grievance shall be looked into by the concerned authority expeditiously.

Order Date :- 13.10.2009

RKP